

25STCV37281 25STCV37281

County: los-angeles

Division: Civil Law and Motion

Department: 407

Hearing date: 2026-08-17

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Case Number: 25STCV37281 Hearing Date: August 17, 2026 Dept: 407

Tentative Ruling

Judge Brock T. Hammond, Department 407

HEARING DATE: August

17, 2026 TRIAL DATE: Not

set

CASE: Luis E. Valle, On Behalf of Himself and

Tax Payers of the State of California v. Richard Camacho, et al.

CASE NO.: 25STCV37281

MOTION

FOR SUMMARY ADJUDICATION FOR UNDISPUTED FUNDS

MOVING

PARTY: Plaintiff Luis E. Valle, in pro per

RESPONDING

PARTY: Defendant Los Angeles Community College District

I. INTRODUCTION

On

December 23, 2025, Plaintiff Luis E. Valle dba as Valle Grande Construction, on behalf of himself and tax payers of the State of California, commenced this action against defendants Richard Camacho, Vanir Construction Management, Inc.,

Hector Diaz, VIS Inspection Services, Inc., Janay Wilson, Cordoba Corporation, Marco Tarantino, Julio Benitez, Jacobs Engineering Group Inc., Los Angeles Community College District ("LACCD").

Plaintiff brings causes of action for breach of contract, breach of implied covenant of good faith and fair dealing, statutory retaliation, civil extortion, civil conspiracy, declaratory and injunctive relief, and retaliatory breach of contract.

On May 20, 2026, Plaintiff filed a Motion for Summary Adjudication of Undisputed Funds. Plaintiff seeks an order directing LACCD to immediately release and remit to Plaintiff the contractual sum of \$350,000.

On July 28, 2026, LACCD filed an opposition.

On August 3, 2026, Plaintiff filed a reply.

II. DISCUSSION

Plaintiff's motion is procedurally defective. A motion for summary adjudication "shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty." (Code Civ. Proc., § 437c, subd. (f)(1).) "The purpose of the enactment of Code of Civil Procedure section 437c, subdivision (f) was to stop the practice of piecemeal adjudication of facts that did not completely dispose of a substantive area." (Catalano v. Superior Court (2000) 82 Cal.App.4th 91, 97.)

Here, Plaintiff's motion does not seek adjudication of any issue enumerated in section 437c. Plaintiff does not identify a cause of action to be adjudicated, an affirmative defense to be resolved, a claim for damages, or an issue of duty. Instead, Plaintiff's motion seeks adjudication of one factual issue: whether certain contract funds in the total sum of \$350,000 should be paid. Adjudication of this narrow issue would still leave unsettled Plaintiff's breach of contract

claims, LACCD's affirmative defenses, and the parties' remaining contractual disputes. This is the very sort of piecemeal adjudication subdivision (f) of the summary judgment statute was designed to prevent. On this ground alone, the motion fails.

III. CONCLUSION

The motion
for summary adjudication is DENIED.

Defendant
is ordered to give notice, unless waived.

Dated: August 17, 2026

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¿ Brock T. Hammond

¿ Judge of the Superior
Court¿